

Calendar Line 1

Case Name: *American Express National Bank vs. Merquais Nabizada*
Case No.: 22CV406660

PLAINTIFF'S MOTION TO VACATE CONDITIONAL DISMISSAL AND FOR ENTRY OF JUDGMENT PURSUANT TO CODE OF CIVIL PROCEDURE SECTION 664.6

The parties entered into a written settlement agreement on March 8, 2024 resolving this action. The agreement was signed by Defendant and by Plaintiff's counsel on Plaintiff's behalf and satisfies the requirements of Code of Civil Procedure section 664.6. The agreement sets forth the material settlement terms, including the amount owed, payment schedule, and default provisions.

On March 12, 2024, the Court dismissed the action without prejudice and expressly retained jurisdiction under Code of Civil Procedure section 664.6 to enforce the settlement and enter judgment upon default.

Plaintiff has established that Defendant defaulted under the settlement agreement. Defendant has not made payment since March 2024, the first month payments were due pursuant to the parties' stipulation. Plaintiff provided written notice of default as required by the agreement on June 26, 2024, and afforded Defendant the contractual opportunity to cure. Defendant failed to cure the default. No opposition has been filed by Defendant to the pending motion.

Pursuant to the terms of the settlement agreement and the Court's retained jurisdiction, Plaintiff is entitled to entry of judgment. The requested amount of \$12,952.92, consisting of the unpaid settlement balance and recoverable costs, is supported by the declaration and exhibits submitted in support of the motion.

Accordingly:

1. The motion is GRANTED.
2. The conditional dismissal is VACATED to the extent necessary to enforce the settlement agreement;
3. Judgment shall be entered in favor of Plaintiff and against Defendant in the amount of \$12,952.92.

Plaintiff to submit the proposed order and judgment accompanied by the necessary Form EFS 020 within 7 days of the hearing.

Calendar Line 2

Case Name: *Zhao et al. v. Guo et al.*

Case No.: 25CV465349

DEFENDANTS' MOTION TO STAY AND PETITION TO COMPEL ARBITRATION

This matter arises from a medical malpractice action brought by Plaintiffs and Yiting Zhao ("Ms. Zhao") and Tian Tian ("Mr. Tian") (collectively "Plaintiffs") against Defendants Chuntian Acupuncture Clinic, Inc. ("CAC") and Yueyue Guo, L.A.c. ("Dr. Guo") (collectively "Defendants"). Plaintiffs allege that Defendants negligently rendered acupuncture and related therapeutic treatment to Ms. Zhao in May 2024 in connection with the treatment of her preexisting knee injuries. (Complaint at p. 4.) Plaintiffs allege Defendants utilized a smoke-free moxibustion appliance that allegedly caused Ms. Zhao third-degree burns on her knees. (*Ibid.*) Plaintiffs allege "[a]s a result of Defendants' negligent use of this machine—without appropriate assessment, informed consent, or precaution—Plaintiff Zhao sustained significant injuries requiring multiple debridement procedures both domestically and abroad." (*Ibid.*) Ms. Zhao maintains she has sustained "ongoing physical pain, emotional distress, and limitations in her mobility and daily functioning." (*Ibid.*) Mr. Tian alleges he has suffered from a "loss of consortium as a result of his wife's injuries." (*Ibid.*)

Defendants now petition the Court to compel arbitration of Plaintiffs' claims pursuant to an Arbitration Agreement ("the Agreement") executed by Ms. Zhao as a condition of treatment. Having reviewed the Agreement, the Court concludes the petition to compel arbitration should be continued.

PROCEDURAL MATTERS

Under the California Arbitration Act (Code Civ. Proc. §§ 1280-1294.2), "[a] copy of the petition and a written notice of the time and place of the hearing thereof and any other papers upon which the petition is based shall be served in the manner provided [herein]." (*Id.* At § 1290.4, subd. (a).) "A response shall be served and filed within 10 days after service of the petition . . . The time provided in this section for serving and filing a response may be extended by an agreement in writing between the parties to the court proceeding or, for good cause, by order of the court." (*Id.* At § 1290.6.) If a response is not "duly served and filed," the allegations of the petition are deemed to be admitted." (*Id.* At § 1290.)

Defendants served their petition to compel arbitration on November 14, 2025. On May 26, 2025, Plaintiffs filed "Proposals as to Content of Statement of Decision" nine days after Defendants filed their memorandum of points and authorities in support of the petition to compel arbitration. Therein, Plaintiffs do not oppose the petition to compel arbitration, but instead request the Court make no findings as to the merits of Plaintiffs' claims or Defendants' defenses. (Plaintiffs' Proposals Re Statement of Decision at p. 2:3-6.)

On June 1, 2026, Plaintiffs filed an opposition to Defendants' petition to compel arbitration. Defendants maintain the opposition is untimely because it does not adhere to the statutory timeline proscribed by Code of Civil Procedure section 1290.6. Plaintiffs have instead filed their opposition pursuant to Code of Civil Procedure section 1005, subdivision (b) or nine court days before the hearing. Defendants argue the legislature has specifically created